

IN THE SENATE

SENATE BILL NO. 1399

BY STATE AFFAIRS COMMITTEE

AN ACT

RELATING TO THE UNIFORM REAL PROPERTY TRANSFER ON DEATH ACT; AMENDING CHAPTER 6, TITLE 15, IDAHO CODE, BY THE ADDITION OF A NEW PART 5, CHAPTER 6, TITLE 15, IDAHO CODE, TO ESTABLISH PROVISIONS REGARDING THE UNIFORM REAL PROPERTY TRANSFER ON DEATH ACT; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Chapter 6, Title 15, Idaho Code, be, and the same is hereby amended by the addition thereto of a NEW PART, to be known and designated as Part 5, Chapter 6, Title 15, Idaho Code, and to read as follows:

PART 5

UNIFORM REAL PROPERTY TRANSFER ON DEATH ACT

15-6-501. SHORT TITLE. This part shall be known and may be cited as the "Uniform Real Property Transfer on Death Act."

15-6-502. DEFINITIONS. As used in this part:

(1) "Beneficiary" means a person who receives property under a transfer on death deed.

(2) "Designated beneficiary" means a person designated to receive property in a transfer on death deed.

(3) "Joint owner" means an individual who owns property concurrently with one (1) or more other individuals with a right of survivorship. The term includes a joint tenant, owner of community property with a right of survivorship, and tenant by the entirety. The term does not include a tenant in common or owner of community property without a right of survivorship.

(4) "Person" means an individual, corporation, business trust, estate, trust, partnership, limited liability company, association, joint venture, public corporation, government or governmental subdivision, agency, or instrumentality, or any other legal or commercial entity.

(5) "Property" means an interest in real property located in this state that is transferable on the death of the owner.

(6) "Transfer on death deed" means a deed authorized pursuant to the provisions of this part.

(7) "Transferor" means an individual who makes a transfer on death deed.

15-6-503. APPLICABILITY. The provisions of this part shall apply to a transfer on death deed made before, on, or after July 1, 2026, by a transferor dying on or after July 1, 2026.

1 15-6-504. NONEXCLUSIVITY. The provisions of this part shall not af-
2 fect any method of transferring property otherwise permitted under the law
3 of this state.

4 15-6-505. TRANSFER ON DEATH DEED AUTHORIZED. An individual may trans-
5 fer property to one (1) or more beneficiaries effective at the transferor's
6 death by a transfer on death deed.

7 15-6-506. TRANSFER ON DEATH DEED REVOCABLE. A transfer on death deed
8 shall be revocable even if the deed or another instrument contains a contrary
9 provision.

10 15-6-507. TRANSFER ON DEATH DEED NONTESTAMENTARY. A transfer on death
11 deed shall be nontestamentary.

12 15-6-508. CAPACITY OF TRANSFEROR. The capacity required to make or re-
13 voke a transfer on death deed is the same as the capacity required to make a
14 will.

15 15-6-509. REQUIREMENTS. A transfer on death deed:

16 (1) Except as otherwise provided in subsection (2) of this section,
17 shall contain the essential elements and formalities of a properly record-
18 able inter vivos deed;

19 (2) Shall state that the transfer to the designated beneficiary is to
20 occur at the transferor's death; and

21 (3) Shall be recorded before the transferor's death in the public
22 records in the office of the county recorder of deeds of the county where the
23 property is located.

24 15-6-510. NOTICE, DELIVERY, ACCEPTANCE, CONSIDERATION NOT RE-
25 QUIRED. A transfer on death deed shall be effective without:

26 (1) Notice or delivery to or acceptance by the designated beneficiary
27 during the transferor's life; or

28 (2) Consideration.

29 15-6-511. REVOCATION BY INSTRUMENT AUTHORIZED -- REVOCATION BY ACT
30 NOT PERMITTED. (1) Subject to the provisions of subsection (2) of this sec-
31 tion, an instrument shall be effective to revoke a recorded transfer on death
32 deed, or any part of it, only if the instrument:

33 (a) Is one (1) of the following:

34 (i) A transfer on death deed that revokes the deed or part of the
35 deed expressly or by inconsistency;

36 (ii) An instrument of revocation that expressly revokes the deed
37 or part of the deed; or

38 (iii) An inter vivos deed that expressly revokes the transfer on
39 death deed or part of the deed; and

40 (b) Is acknowledged by the transferor after the acknowledgment of the
41 deed being revoked and recorded before the transferor's death in the
42 public records in the office of the county recorder of deeds of the
43 county where the deed is recorded.

1 (2) If a transfer on death deed is made by more than one (1) transferor:

2 (a) Revocation by a transferor shall not affect the deed as to the in-
3 terest of another transferor; and

4 (b) A deed of joint owners shall be revoked only if it is revoked by all
5 of the living joint owners.

6 (3) After a transfer on death deed is recorded, it may not be revoked by
7 a revocatory act on the deed.

8 (4) The provisions of this section shall not limit the effect of an in-
9 ter vivos transfer of the property.

10 15-6-512. EFFECT OF TRANSFER ON DEATH DEED DURING TRANSFEROR'S
11 LIFE. During a transferor's life, a transfer on death deed shall not:

12 (1) Affect an interest or right of the transferor or any other owner,
13 including the right to transfer or encumber the property;

14 (2) Affect an interest or right of a transferee, even if the transferee
15 has actual or constructive notice of the deed;

16 (3) Affect an interest or right of a secured or unsecured creditor or
17 future creditor of the transferor, even if the creditor has actual or con-
18 structive notice of the deed;

19 (4) Affect the transferor's or designated beneficiary's eligibility
20 for any form of public assistance;

21 (5) Create a legal or equitable interest in favor of the designated ben-
22 eficiary; or

23 (6) Subject the property to claims or process of a creditor of the des-
24 ignated beneficiary.

25 15-6-513. EFFECT OF TRANSFER ON DEATH DEED AT TRANSFEROR'S DEATH. (1)
26 Except as otherwise provided in the transfer on death deed, in this section,
27 or in other applicable state law, on the death of the transferor, the follow-
28 ing rules shall apply to property that is the subject of a transfer on death
29 deed and owned by the transferor at death:

30 (a) Subject to paragraph (b) of this subsection, the interest in the
31 property shall be transferred to the designated beneficiary in accor-
32 dance with the deed.

33 (b) The interest of a designated beneficiary shall be contingent on
34 the designated beneficiary surviving the transferor. The interest of
35 a designated beneficiary that fails to survive the transferor shall
36 lapse.

37 (c) Subject to paragraph (d) of this subsection, concurrent interests
38 shall be transferred to the beneficiaries in equal and undivided shares
39 with no right of survivorship.

40 (d) If the transferor has identified two (2) or more designated bene-
41 ficiaries to receive concurrent interests in the property, the share of
42 one that lapses or fails for any reason shall be transferred to the other
43 or to the others in proportion to the interest of each in the remaining
44 part of the property held concurrently.

45 (2) Subject to the provisions of chapter 24, title 31, Idaho Code,
46 a beneficiary shall take the property subject to all conveyances, encum-
47 brances, assignments, contracts, mortgages, liens, and other interests to
48 which the property is subject at the transferor's death. For purposes of

1 this subsection and chapter 24, title 31, Idaho Code, the recording of the
 2 transfer on death deed shall be deemed to have occurred at the transferor's
 3 death.

4 (3) If a transferor is a joint owner and is:

5 (a) Survived by one (1) or more other joint owners, the property that
 6 is the subject of a transfer on death deed shall belong to the surviving
 7 joint owner or owners with right of survivorship; or

8 (b) The last surviving joint owner, the transfer on death deed shall be
 9 effective.

10 (4) A transfer on death deed transfers property without covenant or
 11 warranty of title even if the deed contains a contrary provision.

12 15-6-514. DISCLAIMER. A beneficiary may disclaim all or part of the
 13 beneficiary's interest as provided by law.

14 15-6-515. LIABILITY FOR CREDITOR CLAIMS AND STATUTORY ALLOWANCES. (1)
 15 To the extent the transferor's probate estate is insufficient to satisfy
 16 an allowed claim against the estate or a statutory allowance to a surviv-
 17 ing spouse or child, the estate may enforce the liability against property
 18 transferred at the transferor's death by a transfer on death deed.

19 (2) If more than one (1) property is transferred by one (1) or more
 20 transfer on death deeds, the liability pursuant to subsection (1) of this
 21 section shall be apportioned among the properties in proportion to their net
 22 values at the transferor's death.

23 (3) A proceeding to enforce the liability pursuant to this section
 24 shall be commenced no later than eighteen (18) months after the transferor's
 25 death.

26 15-6-516. OPTIONAL FORM OF TRANSFER ON DEATH DEED. [RESERVED]

27 15-6-517. OPTIONAL FORM OF REVOCATION. [RESERVED]

28 15-6-518. UNIFORMITY OF APPLICATION AND CONSTRUCTION. In applying
 29 and construing the provisions of this part, consideration must be given to
 30 the need to promote uniformity of the law with respect to its subject matter
 31 among the states that enact it.

32 15-6-519. RELATION TO ELECTRONIC SIGNATURES IN GLOBAL AND NATIONAL
 33 COMMERCE ACT. The provisions of this chapter shall modify, limit, and su-
 34 persede the federal electronic signatures in global and national commerce
 35 act, 15 U.S.C. 7001, et seq., but shall not modify, limit, or supersede sec-
 36 tion 101(c) of that act, 15 U.S.C. section 7001(c), or authorize electronic
 37 delivery of any of the notices described in section 103(b) of that act, 15
 38 U.S.C. section 7003(b).

39 SECTION 2. An emergency existing therefor, which emergency is hereby
 40 declared to exist, this act shall be in full force and effect on and after
 41 July 1, 2026.